

Plaintiff attaches Exhibit A and B to her moving papers, both of which are the settlement agreement.

Plaintiff alleges that she was coerced to sign the agreement but presents no evidence of coercion. In her reply, Plaintiff alleges coercion on behalf of her prior counsel but provides no evidence of coercion.

Plaintiff, again, argues that Defendants are relying on altered terms without presenting any evidence that any terms have been altered.

Finally, Plaintiff asks for relief under CCP 473(b), but makes no argument under the requirements of CCP 473(b) which requires a showing of mistake, inadvertence, surprise or excusable neglect. The court is empowered to relieve a party “upon any terms as may be just ... from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (C.C.P. §473(b).) Because the law favors judgments on the merits, “doubts must be resolved in favor of relief....” (*Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 134.)

For these reasons the motion to set aside the settlement agreement executed by Plaintiff on 11/8/2025 is denied. The request by Defendants for attorney’s fees is denied.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2306307	JANE DOE VS STATE OF CALIFORNIA, BY AND THROUGH DEPARTMENT OF EDUCATION, A PUBLIC ENTITY	MOTION FOR PROTECTIVE ORDER
CASE #	CASE NAME	HEARING NAME
CVRI2306307	JANE DOE VS STATE OF CALIFORNIA, BY AND THROUGH DEPARTMENT OF EDUCATION, A PUBLIC ENTITY	MOTION TO COMPEL COMPLETION OF PLAINTIFF'S DEPOSITION

Tentative Ruling:

This is a childhood sexual assault case. Plaintiff Jane Doe was a minor (at the time this matter was filed), disabled student at Defendant California School for the Deaf, Riverside (“School”), which is allegedly a component of the State Special Schools and Services Division of Defendant State of California Department of Education (“State”). Plaintiff alleges that during the 2022 and 2023 school years, she was repeatedly sexually assaulted by other students on School premises in classrooms, hallways, gymnasium and bathrooms. Plaintiff asserts that teachers and staff of the school failed

to properly monitor and supervise students, which allowed the sexual misconduct to continue, despite complaints from parents.

On November 22, 2023, Plaintiff, by and through her Guardian Ad Litem, P.L., filed the Complaint. She asserts four causes of action for: (1) Negligence; (2) Negligent Hiring, Retention, Supervision and Training; (3) Negligent Infliction of Emotional Distress; and (4) Intentional Infliction of Emotional Distress. Trial commenced on February 27, 2026. On March 24, 2026, the Court granted Plaintiff's Motion for Mistrial due to Defendants' failure to produce 17,000 pages of documents. The new trial was initially set for May 22, 2026, but was continued to July 31, 2026.

Plaintiff now moves for a protective order to prevent her continued deposition, which was noticed on April 7, 2026. Plaintiff argues that she is clinically fragile, and her mental condition has deteriorated since the trial. Plaintiff argues that the second deposition is unnecessary since Plaintiff was previously deposed for five hours and Defendants have access to school records and other evidence. Plaintiff argues that the Court already determined that another deposition was improper.

Defendants argue that they were unable to discuss damages during the first deposition before Plaintiff's counsel terminated the deposition. Defendants argue that the mistrial reopens discovery and allows the parties to start over. Defendants argue that Plaintiff's testimony is necessary to prepare for trial and Defendants will be deprived of due process rights if they are not permitted to depose Plaintiff. Defendants argue that Plaintiff failed to produce competent evidence that Plaintiff's mental health has deteriorated or that she cannot participate in the deposition. Defendants argue that a discovery referee could be appointed to supervise the deposition, or other guardrails could be implemented to protect Plaintiff without denying Defendants the right to depose Plaintiff.

In her reply, Plaintiff argues that the mistrial does not allow for unlimited new discovery. Plaintiff argues that the Court already determined that Defendants were not diligent in moving to compel the second deposition. Plaintiff argues that the evidence regarding her mental health crisis is sufficient, and Defendants have produced no competing evidence. Plaintiff argues that Defendants' due process concerns are unfounded because they have already deposed Plaintiff and have access to substantial records. Plaintiff argues that a discovery referee will not address the clinical risks.

Defendants have also brought a motion seeking to compel the same deposition at issue in the motion for protective order. The parties assert the same arguments as those set forth above regarding the protective order in this motion.

Analysis

A court should "limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence." (CCP § 2017.020(a).) CCP § 2025.420(b) provides that "for good cause shown," the court may issue a protective order "to protect any party ... from unwarranted annoyance,

embarrassment, or oppression, or undue burden and expense.” The burden is on the moving party to establish “good cause” for the requested relief. (See *Emerson Elec. Co. v. Superior Court* (1976) 16 Cal.4th 1101, 1110; *Nativi v. Deutsche Bank Nat’l Trust Co.* (2014) 223 Cal.App.4th 261, 318.)

“A trial court must be mindful of the Legislature’s preference for discovery over trial by surprise, must construe the facts before it liberally in favor of discovery, may not use its discretion to extend the limits on discovery beyond those authorized by the Legislature, and should prefer partial to outright denials of discovery.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 540.) “In the absence of contrary court order, a civil litigant’s right to discovery is broad. ‘[A]ny party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action . . . if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.’” (*Id.* at 541.) Any party may obtain discovery by taking the deposition of any person, including a party to the action. (CCP § 2025.010.) Generally, a deposition examination shall be limited to seven hours of total testimony. (CCP § 2025.290(a).)

Service of a proper deposition notice is sufficient to compel a party or the employee of a party to appear, testify, and produce records in their possession without a subpoena. (CCP §2025.280(a).) If a party deponent fails to appear or produce documents, without having serviced a valid objection under CCP § 2025.410, the party giving the notice may move for an order compelling the deponent’s attendance, testimony, and production of documents. (CCP § 2025.450(a).) Based on the evidence provided, it does appear that Plaintiff’s deposition ended after approximately 5 hours, and the parties indicated that a new date would be set to finish the deposition. (*Jane Doe’s Deposition*, 213:15-25; 214:1-2.) Defendants have re-noticed Plaintiff’s deposition, and she has failed to appear.

Plaintiff argues that due to the state of her mental health, her motion should be granted, Defendants’ motion should be denied, and she should not have to sit for a second day of deposition testimony. She provides a declaration from a licensed marriage and family therapist that has been treating her since November 28, 2025. (Declaration of Clara Logan, ¶ 5.) Her therapist provides that at or around the time of trial, which ended in a mistrial, Plaintiff “experienced an acute behavioral and psychiatric crisis.” (*Id.* at ¶ 8.) It appears that she engaged in high-risk behavior like leaving home without authorization, operating a vehicle without a license, and placing herself in a situation involving sexual activity with a peer. (*Id.* at ¶ 8.) Plaintiff is 20 years old with hearing and other disabilities. (Complaint, ¶ 2; Application and Order for Appointment of Guardian Ad Litem, ¶ 4.) Plaintiff’s father contends that he is her conservator. (Declaration of P.L., ¶ 1.) However, it is unclear what type of conservatorship is in place and the extent of said conservatorship. No evidence regarding this issue has been provided. Plaintiff’s therapist does opine that the stress associated with legal proceedings has contributed to her clinical instability and she believes that Plaintiff cannot safely participate in any adversarial legal proceedings at this time. (Declaration of Clara Logan, ¶¶ 12 and 13.) Her therapist provides that a deposition setting poses a significant and foreseeable risk of harm to Plaintiff like triggering an acute trauma response. (*Id.* at ¶ 14.) While her therapist appears to opine that the prior trial and

mistrial contributed to the deterioration in her mental state, it is unclear why. Plaintiff did not testify at trial and no evidence has been provided to support this assertion. She provides no evidence that her deterioration was caused by her prior deposition.

Defendants argue that this assessment by Plaintiff's therapist is not correct. However, they provide no evidence to contradict this assessment. Defendants do point to the fact that this is no ordinary witness, it is the Plaintiff. The individual who has brought the claims at issue. They argue that their right to due process will be violated if they are not allowed to fully depose Plaintiff.

Plaintiff was initially deposed on August 26, 2024. (Decl. of Klein, ¶ 2.) The deposition lasted nearly five hours. (Id.) Plaintiff contends that Defendants have done extensive discovery in this matter and additional time deposing Plaintiff is not warranted based on how fragile her mental health state is. Defendants appear to want to obtain additional information at deposition regarding Plaintiff's damages. The parties both appear to agree that Defendant can obtain additional discovery due to the mistrial. However, they disagree as to the extent of discovery allowed. Plaintiff also argues that the Court has already denied Defendants' prior attempts at finishing Plaintiff's deposition. However, this was done due to the discovery cut-off date before the mistrial. (Minute Order 1/27/26.)

Plaintiff's mental state is clearly important. The evidence provided appears to indicate that she is not in a good place and has been experiencing suicidal ideations. (Declaration of Clara Logan, ¶ 8.) However, Plaintiff was the party who brought this case. A declaration for mistrial automatically reopens discovery. (Clark v. Optical Coating Laboratory, Inc. (2008) 165 Cal.App.4th 150, 169 f. 13.) While Plaintiff argues that Defendants did not act diligently in bringing this motion, they cite to no authority to support this assertion. Additionally, it appears that there are new facts at issue that were not at issue prior to trial – Plaintiff's deterioration. If Plaintiff is going to seek damages based on her present mental state, Defendants should be able to ask questions about this state and what may have caused it.

The Court will grant the motion to compel the deposition of Plaintiff, but with limits to accommodate Plaintiff's mental health, but preserve Defendants' right to discovery.

The deposition will be limited to two hours and can be broken up over two consecutive days (an hour each day). Plaintiff may be allowed to have her therapist onsite. Plaintiff will select the location of the deposition. If Plaintiff elects, a discovery referee shall be allowed at Defendants' expense to make sure Plaintiff does not get overwhelmed, and Defendants' questions are not out of line or too aggressive. The Court further orders that the individual that upset Plaintiff at the last deposition can appear via zoom and their image blocked from Plaintiff's view.

The timeline under CCP §§ 2028.030(b) and 2028.040 can be adjusted due to the pending 7/31/26 trial date or brief continuance of the trial date can be discussed with the Court.

The Court denies the motion for protective order but grants the motion to compel her deposition with limits that will accommodate Plaintiff's mental state as indicated above.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2306307	JANE DOE VS STATE OF CALIFORNIA, BY AND THROUGH DEPARTMENT OF EDUCATION, A PUBLIC ENTITY	MOTION TO COMPEL PRODUCTION OF DOCUMENTS IN COMPLIANCE WITH COURT ORDER

Tentative Ruling:

This matter was continued, and Defendants were ordered to submit a supplemental privilege log by 6/26/26. As of 6/24/26, no privilege log has been provided. On June 23 the Court signed a stipulation by the parties extending timelines and deadlines.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2402001	NICKERSON VS AMERICAN HONDA MOTOR CO., INC.	MOTION TO COMPEL VEHICLE INSPECTION

Tentative Ruling:

This is a lemon law action. On April 15, 2024, Plaintiff Jaelynne Nickerson ("Plaintiff") filed a Complaint against Defendant American Honda Motor Co., Inc. ("Defendant") for: (1) breach of express warranty in violation of the Song Beverly Act; and (2) breach of implied warranty in violation of the Song Beverly Act. In the Complaint, Plaintiff alleges that on November 17, 2022, she purchased a 2023 Honda HR-V (the "Vehicle"), on which Defendant issued a warranty. (Complaint at ¶¶ 8, 16.) The Vehicle was delivered to Plaintiff with defects and nonconformities that impaired the use, value, and safety of the Vehicle. (Complaint at ¶ 17.) Plaintiff brought the Vehicle to Defendant's authorized repair facility for repairs, and Defendant could not conform the Vehicle to the warranty within a reasonable number of attempts. (Complaint at ¶¶ 18-19.) Defendant failed to provide restitution. (Complaint at ¶ 20.)

On February 28, 2025, Defendant served a notice of vehicle inspection on Plaintiff, with the inspection to take place on March 31, 2025. On March 26, 2025, Plaintiff served objections to the inspection notice. On July 17, 2025, Defendant served an amended notice of vehicle inspection for August 5, 2025. On August 1, 2025, Plaintiff again served objections. In December 2025, Defendant asked Plaintiff to provide available dates for the vehicle inspection, and Plaintiff stated that the discovery cut-off had already passed. The trial was continued for a short time, and in February 2026, the